

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026

HOUSE BILL 3019

By: Hays

AS INTRODUCED

An Act relating to schools; amending 70 O.S. 2021, Section 6-127, which relates to teacher's assistants; increasing and reducing class size required to have a teacher's assistant for specific school years; removing requirement for certain percentage of reduced lunch eligible students to be present; amending 70 O.S. 2021, Sections 18-113.1 and 18-133.2, which relate to class size limitations; increasing and reducing the maximum number of students allowed per class in kindergarten through fifth grades; eliminating certain exceptions to class size limits; creating class size limitations for classes with teacher's assistants; providing an effective date; and declaring an emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 70 O.S. 2021, Section 6-127, is amended to read as follows:

Section 6-127. A. ~~Beginning with~~ For the 1990-91 2026-2027 school year, every school site shall employ a teacher's assistant ~~or use a volunteer~~ for each class in ~~grades~~ kindergarten ~~through two~~ which has a class size of more than ~~twenty (20)~~ twenty-two (22) students in average daily membership as of September 15 of each year

1 ~~and which is composed of students, at least twenty percent (20%) of~~
2 ~~whom meet the criteria specified in subsection B of this section,~~
3 ~~provided, this requirement.~~ For the 2027-2028 school year, every
4 school site shall employ a teacher's assistant for each class in
5 kindergarten which has a class size of more than twenty (20)
6 students in average daily membership as of September 15 of each
7 year. Beginning with the 2028-2029 school year, and each school
8 year thereafter, every school site shall employ a teacher's
9 assistant for each class in kindergarten which has a class size of
10 more than eighteen (18) students in average daily membership as of
11 September 15 of each year. The requirements of this subsection
12 shall not apply to classes that are not subject to class size
13 limitations pursuant to subsection D C of Section 18-113.1 of this
14 title or to pull-out sections for Chapter 1 or to Special Education
15 students. Assistants shall be required as of September 15 of each
16 year. The State Board of Education shall establish regulations that
17 prescribe the qualifications for and duties of teacher assistants in
18 public schools. The State Board of Education shall also establish
19 standards and regulations which provide for a determination of how
20 and when teacher assistants may be used as an appropriate and
21 necessary part of classroom instruction. In addition to any other
22 duties which the Board may deem appropriate, teacher assistants may
23 perform or assist a classroom teacher in the performance of hall
24 room duty, bus duty, playground duty, lunchroom duty,

1 extracurricular activities ~~volving~~ involving school functions or any
2 other noninstructional duty the Board may prescribe. Provided,
3 nothing in this section shall construe teacher assistants to be
4 defined as personnel as set out in Section 6-108 of this title or
5 require teacher assistants to possess the certification required for
6 teachers.

7 B. ~~Any student who meets the criteria established by the State~~
8 ~~Board which are commensurate with established eligibility criteria~~
9 ~~for participation in the National School Lunch Act of 1946, 42~~
10 ~~U.S.C. Section 1751 et seq. as amended, shall be included in the~~
11 ~~percentage necessary to meet the requirement of subsection A of this~~
12 ~~section for the entitlement to a teacher's assistant for such class~~
13 Kindergarten classes with a teacher's assistant shall not exceed
14 twenty-eight (28) students; provided, this requirement shall not
15 apply to classes that are not subject to class size limitations
16 pursuant to subsection C of Section 18-113.1 of this title.

17 C. For the purposes of this section, and for Sections 18-113.1
18 and 18-113.2 of this title, a federally funded bilingual assistant
19 shall not qualify as a teacher's assistant.

20 |SECTION 2. AMENDATORY 70 O.S. 2021, Section 18-113.1, is
21 amended to read as follows:

22 Section 18-113.1. A. The provisions of this subsection shall
23 apply only to grades one through ~~three~~ five.
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1 1. ~~Except~~ For the 2026-2027 school year, except as otherwise
2 provided for in this section, no child shall be included in the
3 average daily membership of a school district for the purpose of
4 computing and paying state-appropriated funds if that child is
5 regularly assigned to a teacher or to a class that includes more
6 than twenty-two (22) students. For the 2027-2028 school year,
7 except as otherwise provided for in this section, no child shall be
8 included in the average daily membership of a school district for
9 the purpose of computing and paying state-appropriated funds if that
10 child is regularly assigned to a teacher or to a class that includes
11 more than twenty (20) students. Beginning with the 2028-2029 school
12 year, except as otherwise provided for in this section, no child
13 shall be included in the average daily membership of a school
14 district for the purpose of computing and paying state-appropriated
15 funds if that child is regularly assigned to a teacher or to a class
16 that includes more than eighteen (18) students.

17 2. If a class or classes in a grade exceed the class size
18 limitation provided for in this subsection, the class size
19 limitation and penalty shall not apply if:

20 a. ~~the creation of an additional class would cause a~~
21 ~~class to have fewer than ten (10) students; and~~

22 b. ~~a~~ full time teacher's assistant, as defined in Section 6-
23 127 of this title, is employed to serve with each teacher in a class
24 that exceeds the class size limitation provided for in this

1 subsection; provided such class sizes shall not exceed twenty-eight
2 (28) students.

3 ~~3. No school district shall be penalized for exceeding class~~
4 ~~size limitations set forth in this subsection if the limitations are~~
5 ~~exceeded beginning after the first nine (9) weeks of the school~~
6 ~~year.~~

7 Any school district found to be in violation of the provisions
8 of this subsection shall receive a penalty in the State Aid formula
9 as a reduction to State Aid to be determined as follows:

- 10 a. Multiply each pupil in excess of the class size
11 membership limit as provided in this subsection by the
12 grade level weight and by the Base Foundation Support
13 Level for the current school year, and
- 14 b. Multiply each pupil in excess of the class size
15 membership limit as provided in this subsection by the
16 grade level weight and by the Incentive Aid guarantee
17 for the current school year times twenty (20), and
- 18 c. Sum the products of subparagraphs a and b of this
19 paragraph.

20 B. The provisions of this subsection shall apply only to ~~grades~~
21 ~~four through~~ grade six.

22 1. Except as otherwise provided for in this section, no child
23 shall be included in the average daily membership of a school
24 district for the purpose of computing and paying state-appropriated

1 funds if that child is regularly assigned to a teacher or to a class
2 that includes more than twenty (20) students.

3 2. If a class or classes in a grade exceed the class size
4 limitation provided for in this subsection, the class size
5 limitation and penalty shall not apply if the creation of an
6 additional class would cause a class to have fewer than sixteen (16)
7 students.

8 3. No school district shall be penalized for exceeding class
9 size limitations set forth in this subsection if the limitations are
10 exceeded beginning after the first nine (9) weeks of the school
11 year.

12 4. Any school district found to be in violation of the
13 provisions of this subsection shall receive a penalty in the State
14 Aid formula as a reduction to State Aid to be determined as follows:

- 15 a. Multiply each pupil in excess of the class size
16 membership limit as provided in this subsection by the
17 grade level weight and by the Base Foundation Support
18 Level for the current school year, and
- 19 b. Multiply each pupil in excess of the class size
20 membership limit as provided in this subsection by the
21 grade level weight and by the Incentive Aid guarantee
22 for the current school year times twenty (20), and
- 23 c. Sum the products of subparagraphs a and b of this
24 paragraph.

1 C. Classes in the following subjects shall not be subject to
2 the class size limitations provided for in subsections A and B of
3 this section:

4 1. Physical education; and

5 2. Chorus, band, orchestra and similar music classes.

6 D. If a school district groups its grades as grades one through
7 five, grades six through eight, and grades nine through twelve, then
8 as to such district the provisions of subsection B of this section
9 shall not apply to ~~grades four and five rather than grades four~~
10 ~~through~~ grade six, and the provisions of Section 18-113.3 of this
11 title shall apply to grades six through twelve.

12 E. Any violations of the provisions of this section shall
13 result in denial of accreditation in accordance with the
14 requirements of Section 3-104.4 of this title.

15 F. Any school district which at the beginning of the school
16 year does not have sufficient classrooms to meet the class size
17 limitation provided for in this section as determined by guidelines
18 established by the State Board of Education shall not be penalized
19 for failure to meet the class size limitations provided for in this
20 section if:

- 21 a. the school district has voted indebtedness, at any
22 time within the five (5) years preceding the year the
23 district exceeds the class size limitations or during
24 the year the district exceeds the class size

1 limitations, through the issuance of bonds or approval
2 by voters of issuance of new bonds for more than
3 eighty-five percent (85%) of the maximum allowable
4 pursuant to the provisions of Section 26 of Article X
5 of the Oklahoma Constitution as shown on the school
6 district budget filed with the State Equalization
7 Board for the current school year and certifications
8 by the Attorney General prior to February 1 of the
9 current school year⁷, and

10 b. on the date of filing of the school district budget
11 with the State Equalization Board, the school district
12 is voting the maximum millage allowable for the
13 support, maintenance and construction of schools as
14 provided for in subsections (a), (c), (d) and (d-1) of
15 Section 9 of Article X of the Oklahoma Constitution
16 and Section 10 of Article X of the Oklahoma
17 Constitution.

18 G. Any school district which exceeds the class size limitations
19 as set forth in this section shall submit a written report to the
20 State Board of Education, on or before July 1 of each year, setting
21 forth the procedures that the district will follow in order to
22 comply with this section.

23 H. School districts which receive state-appropriated funds
24 pursuant to the provisions of Section 18-112.2 of this title and do

not comply with the provisions of this section shall be subject to loss of State Aid for each child in excess of the class size limitations specified in this section.

SECTION 3. AMENDATORY 70 O.S. 2021, Section 18-113.2, is amended to read as follows:

Section 18-113.2. A. The provisions of this section shall apply only to kindergarten.

1. ~~No~~ For the 2026-2027 school year, no child shall be included in the average daily membership of a school district for the purpose of computing and paying state-appropriated funds if that child is regularly assigned to a teacher or to a class that includes more than twenty-two (22) students. For the 2027-2028 school year, no child shall be included in the average daily membership of a school district for the purpose of computing and paying state-appropriated funds if that child is regularly assigned to a teacher or to a class that includes more than twenty (20) students. Beginning with the 2028-2029 school year, and each school year thereafter, no child shall be included in the average daily membership of a school district for the purpose of computing and paying state-appropriated funds if that child is regularly assigned to a teacher or to a class that includes more than eighteen (18) students.

2. If a class or classes in a grade exceed the class size limitation provided for in this subsection, the class size limitation and penalty shall not apply if+

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1 ~~a. the creation of an additional class would cause a~~
2 ~~class to have fewer than ten (10) students; and~~

3 ~~b. a full time teacher's assistant, as defined in Section 6-~~
4 ~~127 of this title, is employed to serve with each teacher in a class~~
5 ~~that exceeds the class size limitation provided for in this~~
6 ~~subsection; provided such class sizes shall not exceed twenty-eight~~
7 ~~(28) students.~~

8 ~~3. No school district shall be penalized for exceeding class~~
9 ~~size limitations set forth in this section if the limitations are~~
10 ~~exceeded beginning after the first nine (9) weeks of the school~~
11 ~~year.~~

12 ~~4. Any school district which at the beginning of the school~~
13 ~~year does not have sufficient classrooms to meet the class size~~
14 ~~limitation provided for in this section as determined by guidelines~~
15 ~~established by the State Board of Education shall not be penalized~~
16 ~~for failure to meet the class size limitations provided for in this~~
17 ~~section if:~~

18 ~~a. the school district has voted indebtedness, at any~~
19 ~~time within the five (5) years preceding the year the~~
20 ~~district exceeds the class size limitations or during~~
21 ~~the year the district exceeds the class size~~
22 ~~limitations, through the issuance of bonds or approval~~
23 ~~by voters of issuance of new bonds for more than~~
24 ~~eighty-five percent (85%) of the maximum allowable~~

1 ~~pursuant to the provisions of Section 26 of Article X~~
2 ~~of the Oklahoma Constitution as shown on the school~~
3 ~~district budget filed with the State Equalization~~
4 ~~Board for the current school year and certifications~~
5 ~~by the Attorney General prior to February 1 of the~~
6 ~~current school year; and~~

7 ~~b. on the date of filing of the school district budget~~
8 ~~with the State Equalization Board, the school district~~
9 ~~is voting the maximum millage allowable for the~~
10 ~~support, maintenance and construction of schools as~~
11 ~~provided for in subsections (a), (c), (d) and (d-1) of~~
12 ~~Section 9 of Article X of the Oklahoma Constitution~~
13 ~~and Section 10 of Article X of the Oklahoma~~
14 ~~Constitution.~~

15 ~~5.~~ 3. Any school district found to be in violation of the
16 provisions of this subsection shall receive a penalty in the State
17 Aid formula as a reduction to State Aid to be determined as follows:

- 18 a. Multiply each pupil in excess of the class size
19 membership limit as provided in this subsection by the
20 grade level weight and by the Base Foundation Support
21 Level for the current school year, and
22 b. Multiply each pupil in excess of the class size
23 membership limit as provided in this subsection by the

1 grade level weight and by the Incentive Aid guarantee
2 for the current school year times twenty (20), and

3 c. Sum the products of subparagraphs a and b of this
4 paragraph.

5 B. Any violations of the provisions of this section shall
6 result in denial of accreditation in accordance with the
7 requirements of Section 3-104.4 of this title.

8 C. School districts which receive state-appropriated funds
9 pursuant to the provisions of Section 18-112.2 of this title and do
10 not comply with the provisions of this section shall be subject to
11 loss of State Aid for each child in excess of the class size
12 limitations specified in this section.

13 SECTION 4. This act shall become effective July 1, 2026.

14 SECTION 5. It being immediately necessary for the preservation
15 of the public peace, health or safety, an emergency is hereby
16 declared to exist, by reason whereof this act shall take effect and
17 be in full force from and after its passage and approval.

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